
Appeal Decisions

Site visit made on 7 July 2026

by **L Fleming BSc (Hons) MRTPI IHBC**

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal A Ref: 6005495

Manor House Farm, Hillfoot Lane, Kingsley, Frodsham WA6 6TB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Garry Ormisher (Cemco 21 Ltd) against Cheshire West and Chester Council.
 - The application Ref is 24/01335/FUL.
 - The development proposed is conversion of agricultural buildings to residential dwellings, demolition of the later additions and construction of new single storey extension to the farmhouse, construction of a new replacement dwelling, new garages and new field gate to adjoining field.
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Appeal B Ref: 6005497

Manor House Farm, Hillfoot Lane, Kingsley, Frodsham WA6 6TB

- The appeal is made under section 20 of the Planning (Listed Buildings and Conservation Areas) Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for listed building consent.
 - The appeal is made by Garry Ormisher (Cemco 21 Ltd) against Cheshire West and Chester Council.
 - The application Ref is 24/01336/LBC.
 - The works proposed are conversion of agricultural buildings to residential dwellings, demolition of the later additions and construction of new single storey extension to the farmhouse, construction of a new replacement dwelling, new garages and new field gate to adjoining field.
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Decisions

Appeal A

1. The appeal is dismissed and planning permission is refused.

Appeal B

2. The appeal is dismissed and listed building consent is refused.

Preliminary Matters, Background and Main Issues

3. Both appeals relate to the same scheme under different but complementary legislation. I have therefore dealt with them together in my reasoning except where indicated otherwise.
4. The Government has published the National Planning Policy Framework 2026 (the Framework), which replaces the version of the Framework available when the Council reached its putative reasons for refusal. Both main parties have had the opportunity to comment on the implications of the revised Framework for the appeals, and I have taken those comments into account. I am satisfied that no party has been prejudiced by my approach.

5. The description of development/works is the same for both Appeal A and Appeal B. Both refer to “construction of a new replacement dwelling”. I have noted comments about the appeal property being sub-divided into two houses for some time, the internal doorway separation, separate kitchens and bathrooms and other features capable of allowing two households to live independently. However, sub-division of one house to create two separate dwellings would require planning permission or a lawful development/use certificate to be granted. There is no substantive evidence to demonstrate that either has been applied for or granted.
6. It is not my role in determining an appeal under Section 78 of the Act to determine whether the use of the appeal property as two separate dwellings is lawful. The appellant is able to seek such a determination from the Council under section 191 of the Act. Thus, for the purposes of determining this appeal, I have assessed the scheme on the basis of there being one detached house (a single dwelling) on the appeal site. As such the proposed “replacement dwelling” would not be a replacement, it would be a new additional dwelling in its own plot capable of being occupied completely independently of the existing dwelling.
7. The Council did not reach a decision on either Appeal A or Appeal B. However, it has made clear that had it done so it would have refused planning permission and listed building consent for both appeals because of their effect on the grade II* listed Manor House Farmhouse. Furthermore, it would also have refused planning permission for Appeal A for reasons relating to the effect on the character and appearance of the area, the Green Belt, the principle of residential development in the countryside, the impact of the proposal on protected species and non-compliance with the Habitats Regulations.
8. Alongside their final comments on the appeals, the appellant has submitted a Unilateral Undertaking (UU) with a range of drawings which have different drawing reference numbers from those which appear to have been considered by the Council when it prepared its appeal statements. I cannot be certain that these drawings are the same as those considered by the Council and interested parties. Thus, in the interests of fairness to all parties I have not considered them, notwithstanding the appellant’s assurances that they are the same. However, the UU appears to address the Council’s ecological and biodiversity net gain concerns and even if it doesn’t, I am satisfied these matters could be overcome in this case. As such, because I am dismissing both appeals for other reasons, in the interests of efficiency, I have not sought the Council’s views on the UU and I have determined the appeals on the basis that the ecological impacts have been addressed subject to conditions and the UU and the policy requirements with regard to biodiversity net gain have been met to the levels detailed in the appellant’s evidence. I am satisfied that no party has been prejudiced by this approach.
9. Against all this background the main issues are:
 - The effect of the proposal on the character and appearance of the area bearing in mind Manor House Farmhouse is grade II* listed (Appeals A and B)
 - Whether the proposal would constitute inappropriate development in the Green Belt and its effect on openness (Appeal A)

- Whether the appeal site is an appropriate location for the proposal having regard to access to services and facilities, the development plan and national policies (Appeal A)
- If the proposal would be inappropriate development in the Green Belt, whether any other considerations clearly outweigh the Green Belt harm and any other harm so as to amount to the very special circumstances necessary to justify the proposed development (Appeal A).

Reasons

Context (Appeals A & B)

10. The appeal site is a collection of traditional farmstead buildings arranged around a courtyard, with domestic gardens next to a dwelling. This includes the grade II* listed Manor House Farmhouse (Manor House) and a range of associated agricultural buildings. The site is close to a small number of properties, mainly dwellings, which are positioned close to and accessed from a narrow rural lane (Hillfoot Lane). This built form is surrounded by open countryside. For the purposes of the Framework, I have treated the appeal site as being outside a settlement.

Character, appearance and heritage significance (Appeal A & B)

11. Manor House is a late C17, detached, three-storey dwelling. It is constructed in brown brick with a slate roof. It has a broadly symmetrical frontage facing Hillfoot Lane, with a two-storey gabled porch, sandstone quoins and other high-quality traditional architectural features as well as modern extensions. Inside it has an oak open-well staircase with wavy splat balusters, early eighteenth-century oak panelling and cornice, moulded beams, oak doors and other high-quality fixtures and fittings.
12. To the west of the dwelling is a substantial U-shaped former piggery range. To the north-east of the farmhouse is a smaller traditional agricultural outbuilding. Both of these traditional agricultural buildings are finished in brick and slate and display a variety of traditional architectural features such as brick arches and stonework around the openings. There are also a number of modern structures attached to the U-shaped former piggery and there is a large agricultural building to its west.
13. Insofar as is relevant to these appeals, the significance of Manor House derives from its value as a well-preserved historic farmhouse with associated traditional agricultural buildings, the surviving high-quality traditional architectural detailing, historic fabric and evident functional relationship between the farmhouse, traditional agricultural buildings and their rural agricultural setting.
14. Although the site would no longer be in agricultural use, the conversion and reuse of the traditional agricultural buildings would secure their long-term retention. Furthermore, the removal of some later additions and the rationalisation of the group of buildings would improve aspects of the immediate setting of Manor House. The works to the farmhouse would be modest and would remedy negative effects associated with modern additions. Furthermore, the works to the farmhouse would be sympathetic to its architectural and historic interest, preserving the features which contribute to its significance. Overall, these elements of the scheme would allow the agricultural heritage of the existing appeal

buildings to be appreciated, preserve their traditional agricultural character and would not harm their significance. On balance, except for the proposed detached new-build dwelling, all other works/development proposed combined would clearly amount to an overall heritage benefit. However, this heritage benefit must be considered alongside the effect of the proposed new-build dwelling.

15. Manor House derives significance not only from its architectural and historic interest as a high-status former farmhouse with associated buildings, but also from its functional relationship with the surrounding rural landscape, where the farmhouse is clearly the principal building within the historic farmstead group.
16. The proposed new-build dwelling would be positioned within that setting and would be physically and functionally separate from Manor House. It would introduce an additional new independent residential building, together with its own separate domestic curtilage, into a part of the site which presently contributes to the wider farmstead context of the listed building. This would dilute the historic relationship between the farmhouse, its associated agricultural buildings and their rural setting. It would also reduce the ability to appreciate Manor House as the principal building within the group of buildings which comprise the historic farmstead, particularly when viewed through the access points on Hillfoot Lane and from the countryside to the north. This would therefore harm the setting and significance of the designated heritage asset which is, in my view, of sufficient magnitude to outweigh the heritage benefit described above.
17. In reaching these conclusions, I have considered the detailed viability evidence, the various condition survey drawings and associated evidence. I note the comments that the proposed new-build dwelling is necessary to make the wider scheme viable and thereby secure the heritage benefit. However, having regard to Historic England Good Practice Advice in Planning Note 4: Enabling Development and Heritage Assets (2019) (GPA4), enabling development of this kind should be justified by clear evidence that it is necessary to secure the conservation objective and that the amount and form of development proposed is the minimum necessary to do so. Irrespective of how the restoration of the historic buildings could be secured, the evidence before me does not demonstrate that the creation of a new detached separate dwelling in the specific sensitive location proposed to the eastern side of Manor House is necessary in all respects to secure those benefits.
18. Particularly, I am not satisfied that alternative, less harmful options have been robustly assessed and discounted. The proposed dwelling would introduce a separate independent residential building and domestic curtilage in a location where it would compete with Manor House as the principal residential building within the historic farmstead group. The evidence does not adequately demonstrate that other options involving the existing buildings, or a different scale, form or siting of development within parts of the site already affected by substantive built form, have been considered. Such options may have retained a more subordinate relationship with Manor House and preserved more of the agricultural character of the group.
19. It is not for me to design an alternative scheme, however, in the absence of adequate evidence on these matters, the claimed need for the proposed dwelling does not overcome the harm I have identified. Whilst I have considered all the examples quoted where schemes involving historic building restoration have been permitted but not implemented, those examples do not justify the particular

proposal before me, which must be considered on its own merits and in light of its specific effects on the significance of Manor House.

20. The residual harm I have identified (accounting for the heritage benefit), whilst not substantial, is a matter of considerable importance and weight. Policy HE6 of the Framework requires this to be balanced against the public benefits of the scheme. I will return to this as part of my planning balance and conclusion.
21. Turning to the effects on character and appearance more generally, I have noted comments about views from nearby public footpaths and other vantage points. However, the scheme would remove some existing built form of poor appearance and would improve the overall appearance of this group of traditional rural buildings. The proposed new dwelling is of relatively simple form and would be seen largely within the context of the existing collection of buildings at Manor House Farm and on Hillfoot Lane, rather than as an isolated form of development in the wider countryside. Thus, I do not find that the proposal would cause harm to the rural character and appearance of the area.
22. Thus, the proposals would accord with Policies ENV 6 of the Cheshire West and Chester Local Plan (Part One) (2015) (LP1) and DM 3 of the Cheshire West and Chester Local Plan (Part Two) (2019) (LP2), insofar as they seek to ensure that development protects local character and appearance. However, for the reasons given, it would conflict with the heritage protection aims of Policy ENV 5 of LP1, Policy DM 47 of LP2 and Policies HE5 and HE6 of the Framework.

Location (Appeal A)

23. Policy STRAT 9 of LP1 allows the reuse of existing rural buildings in the countryside, provided that they are of permanent construction and can be reused without major reconstruction. Furthermore, Policy DM 22 of LP2 supports the change of use of buildings in the countryside to dwellings provided the building is currently redundant or disused; is of permanent and substantial construction and suitable for and capable of conversion to residential use without significant loss of existing fabric, or major or complete reconstruction; the existing building does not have a harmful visual impact; the conversion or change of use of the building would lead to an enhancement to its immediate setting; and the proposal would not be in conflict with existing uses in the locality. Both main parties agree the conversion of the existing agricultural buildings as proposed would accord with Policy STRAT 9 of LP1 and Policy DM 22 of LP2, and I agree.
24. However, the proposed new-build detached dwelling would be outside a settlement in the countryside. It would be located on a narrow rural road without footways and some distance from bus stops and day-to-day services. As such, the proposed new dwelling would not be in an attractive location for walking or cycling to services, particularly in inclement weather, and would not enable good accessibility as envisaged by Policy TR3 of the Framework.
25. Policy S5 of the Framework sets out forms of development outside settlements which should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework. This includes, at criterion j), development which would address an evidenced unmet need. The proposal would clearly address a housing need, particularly given the Council's accepted inability to demonstrate a five-year supply of deliverable housing sites. However, footnote 28

is clear that, where development is outside a settlement, it should be physically well-related to an existing settlement. For the reasons given above, including the character of Hillfoot Lane, its separation from services and facilities and its surrounding open countryside context, I am not satisfied that the appeal site is physically well-related to an existing settlement. There is also no substantive evidence to suggest the proposed new detached dwelling would be on previously developed land or that it would meet any of the other exceptions listed in Policy S5 of the Framework.

26. Thus, the appeal site would not be an appropriate location for the proposed new-build dwelling having regard to development plan policies and national policies. In this regard, that element of the scheme would specifically conflict with Policies STRAT 1, STRAT 2, STRAT 8 and STRAT 9 of LP1, Policies DM 1 and DM 9 of LP2 and Policy TR3 of the Framework, which seek to ensure new dwellings are sustainably located. It would also fail to satisfy Policy S5 of the Framework, insofar as it relates to new-build dwellings outside settlements. For the avoidance of any doubt, I return to Policy S5 of the Framework in my overall planning balance.

Green Belt (Appeal A)

27. Policy GB6 of the Framework confirms that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Policy GB7 identifies forms of development in the Green Belt which are not inappropriate, subject to the criteria set out in that policy. The development plan contains similar policy safeguards in relation to development in the Green Belt, particularly Policy STRAT 9 of LP1. Insofar as is relevant to this appeal, this policy is broadly consistent with the Framework.
28. For the reasons already given, the proposed “replacement dwelling” would not replace the existing dwelling, nor would it form an extension or alteration to it. Instead, it would create a new separate dwelling with its own separate domestic curtilage. It has not been demonstrated that the proposal should be treated as not inappropriate development by reference to the Framework’s grey belt provisions. In any event, for the reasons already given, the proposed new-build dwelling would not be in a sustainable location with particular reference to the Framework’s transport policies. Consequently, the proposal would not fall within any relevant exception under GB7.
29. I acknowledge that substantial existing structures and built form would be demolished. I also note the appellant’s case that, overall, even taking account of the proposed new dwelling, there would be a reduction in the volume of built form on the appeal site. However, that does not, in itself, mean that the proposal would preserve Green Belt openness.
30. In contrast with the built form proposed for demolition, the proposed new-build dwelling would be positioned to the eastern side of Manor House in an area currently largely free from significant structures. It would be prominently located on rising land at the edge of the existing group of buildings in the locality. Together with its associated parking, separate domestic curtilage and likely domestic paraphernalia, it would introduce a separate residential presence into this part of the site which would be particularly noticeable from the countryside to the north and through the access from Hillfoot Lane.

31. Although the overall reduction in built form may limit harm to spatial openness, the proposal would nevertheless cause visual harm to Green Belt openness in this particular location. In my view, that harm would not be outweighed by the benefit associated with the proposed removal of built form from the appeal site. Based on the evidence before me, I am not satisfied that the retention of existing vegetation or new planting would overcome this harm.
32. I therefore find that the proposal would not fall within any relevant exception in GB7 of the Framework. It would amount to inappropriate development in the Green Belt, which is, by definition, harmful under GB6 of the Framework. Overall, the scheme would also cause harm to Green Belt openness. The proposal therefore conflicts with Policies GB6 and GB7 of the Framework and with Policy STRAT 9 of LP1 which, taken together, seek to avoid inappropriate development within the Green Belt and harm to Green Belt openness.

Other considerations (Appeal A)

33. I note the proposal would provide six new dwellings and would secure the refurbishment of the existing farmhouse and associated buildings. It would therefore make a modest contribution to the Council's housing land supply. The Council accepts that it cannot demonstrate a five-year supply of deliverable housing sites, although it has not quantified the shortfall or provided the latest figure. The proposal would improve the living conditions for the occupiers of the appeal property, and there would be economic benefits associated with construction and economic activity associated with the introduction of new households into the area.
34. I have also noted the comments with regard to the Council's handling of the proposals over time and the living conditions of the occupants.

Conclusion and planning balance (Appeals A and B)

35. I have found that the proposals would amount to inappropriate development in the Green Belt, which is harmful by definition. They would also cause harm to Green Belt openness. Substantial weight must be given to that Green Belt harm. I have also found that, even accounting for the heritage benefit, the proposal would on balance harm the significance of the grade II* listed building, which attracts considerable importance and weight. It would also include a new-build dwelling in an inappropriate location outside a settlement.
36. Against this, I give substantial weight to the provision of six new dwellings, particularly in the context of the Council's accepted inability to demonstrate a five-year housing land supply. I also give weight to the heritage benefits associated with the repair, conversion and reuse of traditional buildings, the removal of later additions, the refurbishment of the existing farmhouse, improved living conditions and the economic benefits. Any biodiversity gains above existing policy requirements and landscaping above minimum requirements also carry weight in favour of the scheme.
37. However, whatever the scale of the housing land supply shortfall, the proposed new-build dwelling has not been demonstrated to fall within any relevant category of development supported by Policy S5 of the Framework. Furthermore, insofar as the proposal would address an evidenced unmet need, the appeal site is outside a settlement and, for the reasons given above, is not physically well-related to an

existing settlement. When assessed against the national decision-making policies in the Framework, the benefits of the proposal would clearly be substantially outweighed by the adverse effects I have identified. The other considerations also do not clearly outweigh the Green Belt harm and the other harms I have identified. Consequently, the very special circumstances necessary to justify the development do not exist.

38. The proposal would therefore conflict with the development plan as a whole and with national policy. For the reasons set out above, and having regard to all other matters raised, I conclude that both appeals should be dismissed and planning permission and listed building consent refused.

L Fleming

INSPECTOR